Intellectual Property & Privacy (IPP)

JM0160

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Lecture 7: Data Mining

Knowledge Clip 7.2 :

New laws to facilitate public access to public sector information (PSI)

European Data Strategy

Primary aim is to create an EU Single Market for Data where;

- data can flow within the EU and across sectors (free movement of data as the 5th freedom of the EU),
- while respecting fundamental rights (including privacy), and upholding laws on data protection, intellectual property rights and competition.

The EU will become an attractive, secure and dynamic data economy by;

- setting fair, practical and clear rules on access and re-use of data
- investing in next generation tools and infrastructures to store and process data
- joining forces in European cloud capacity
- pooling European data in key sectors, with common and interoperable data spaces
- giving users rights, tools and skills to stay in full control of their data

European data strategy (europa.eu)



Legislation

Limiting IP rights (database rights & trade secret rights) barriers to re-use of public sector data (information).

1. EU Open Data Directive (2019), [ODD] [*Preceded by EU Directives on the Re-Use of PSI, 2003 & 2013*]

Available at: https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:32019L1024

2. EU Data Governance Act (2022), [DGA] – An EU Regulation

Available at: https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:32022R0868



EU Open Data Directive (2019), [ODD]



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What is Public Sector Information (PSI)

Any representation of acts, facts or information — and any compilation of such acts, facts or information — whatever its medium (paper, or electronic form or as a sound, visual or audiovisual recording), excluding computer programmes (although Member States may extend the application of this Directive to computer programmes) held by **public sector bodies** of the Member States.

- Excludes information the supply of which is an activity falling outside the scope of the **public task** of the public sector bodies concerned as defined by law or by other binding rules in the Member State.



Some key terms defined in Article 2 ODD

Article 2(1) ODD

'public sector body' means the State, regional or local authorities, bodies governed by public law or associations formed by one or more such authorities, or one or more such bodies governed by public law.
E.g., The National Statistics Office of an EU Member State.

Article 2(2) ODD

'bodies governed by public law' means bodies that have the following characteristics:

(a) they are established for the specific purpose of meeting needs in the general interest, and do not have an industrial or commercial character;
(b) they have legal personality;
(c) they are financed, for the most part, by the State, regional or local authorities, or other bodies governed by public law, are subject to management supervision by those authorities or bodies, or have an administrative, managerial or supervisory board, more than half of whose members are appointed by the State, regional or local authorities, or by other bodies governed by public law;

'public task' refers to the core role and functions, as defined in legislation or established through custom and practice (e.g., "optional tasks the creation and maintenance is funded through private investment or revenues other than public funds). What is re-use of public sector information? | ICO



Objective & Scope

Objective: To maximise the re-use of PSI to further stimulate digital innovation in products and services.

Scope

Article 1: Introduces minimum rules aimed at facilitating the **re-use** for, commercial and non-commercial purposes, of:

- PSI held by **public sector bodies**;
- PSI held by certain **public undertakings of EU Member States** (any undertaking over which the public sector bodies may exercise directly or indirectly a dominant influence by virtue of their ownership of it, their financial participation therein, or the rules which govern it);
- Data resulting from publicly funded research.



Article 1(2): A long list of protected categories of data that fall ***outside* the scope** of the Open Data Directive

(c) documents for which third parties hold intellectual property rights;

(d) documents, such as sensitive data, which are excluded from access by virtue of the access regimes in the Member State, including on grounds of:

(i) the protection of national security (namely, State security), defence, or public security;

(ii) statistical confidentiality;

(iii) commercial confidentiality (including business, professional or company secrets);

So Public Sector Bodies and Undertakings cannot refuse access to PSI in which they themselves hold IP rights.

- However, they can refuse access to PSI if a *third party* holds IP rights in that PSI.



Basic rules (1)

- How to access
  - Publication of PSI and metadata online.
  - Upon request by re-user (where possible & appropriate through electronic means)

- Re-Use

Article 2(11): For commercial and non-commercial purposes

- Format:

Article 5(1): public sector bodies and public undertakings shall make their documents available in any pre-existing format or language and, where possible and appropriate, by electronic means, in formats that are open, machine-readable, accessible, findable and re-usable, together with their metadata. Both the format and the metadata shall, where possible, comply with formal open standards.



Basic rules (2)

- Fees

Article 6(2): The re-use of PSI shall be free of charge. However, the recovery of the marginal costs incurred for the reproduction, provision and dissemination of documents as well as for anonymisation of personal data and measures taken to protect commercially confidential information may be allowed.

- Conditions

Article 8(1): The re-use of documents shall not be subject to conditions, unless such conditions are objective, proportionate, non-discriminatory and justified on grounds of a public interest objective. When re-use is subject to conditions, those conditions shall not unnecessarily restrict possibilities for re-use and shall not be used to restrict competition.

Article 8(2): In Member States where licences are used, Member States shall ensure that standard licences for the re-use of public sector documents, which can be adapted to meet particular licence applications, are available in digital format and can be processed electronically. Member States shall encourage the use of such standard licences.



Basic rules (3)

- Time-limit

Article 4(2): Public sector bodies shall process the request and shall deliver the documents for re-use to the applicant or, if a licence is needed, finalise the licence offer to the applicant as soon as possible, and in any event within 20 working days of receipt. That time frame may be extended by a further 20 working days in the case of extensive or complex requests. In such cases, the applicant shall be notified as soon as possible, and in any event within three weeks of the initial request, that more time is needed to process the request and the reasons why.



Articles 13-14: Special rules concerning **high-value PSI datasets.**

What are high-value PSI Datasets?
Article 2(10): Data the re-use of which is associated with important benefits for society, the environment and the economy, in particular because of their suitability for the creation of value-added services, applications and new, high-quality and decent jobs, and of the number of potential beneficiaries of the value-added services and applications based on those datasets;

Current thematic categories

Article 13 & Annex I: Geospatial, earth observation and environment, meteorological, statistics, companies and company ownership, mobility (e.g., transportation, roadmaps).

Conditions for access

Article 14

(a) available free of charge, subject to paragraphs 3, 4 and 5;

(b) machine readable;

(c) provided via APIs; and

(d) provided as a bulk download, where relevant.



Conditions for re-use of publicly-funded research data

Article 10

Research data that is:

(a) publicly funded and

(b) have already been made publicly available through an institutional or subject-based repository by researchers, research performing organisations or research funding organisations

shall be re-usable for commercial or non-commercial purposes, following the principle of 'open by default' and compatible with the FAIR principles (Findable, Accessible, Interoperable and Re-usable): FAIR Principles - GO FAIR (go-fair.org).

But,

Concerns relating to intellectual property rights, personal data protection and confidentiality, security and legitimate commercial interests, shall be taken into account in accordance with the principle of 'as open as possible, as closed as necessary'.



EU Data Governance Act (2022), [DGA]



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Key features

(further information, Data Governance Act explained | Shaping Europe's digital future (europa.eu) :

- **Conditions for the re-use, within the Union, of certain protected categories of data held by public sector bodies, *including* data subject to third party IP rights.** [Articles 3-9]

- Measures to promote neutrality and transparency of data intermediaries (e.g., data marketplaces such as the Data Intelligence Hub of Deutsche Telekom) to ensure they can function as trustworthy organisers of data sharing or pooling within the common European data spaces. [Articles 10-15]



- A framework for voluntary registration of not-for-profit entities that collect and process data made available for altruistic purposes as 'Data Altruism Organisations' recognised in the Union' provided they meet specific transparency requirements, technical and security requirements and offer specific safeguards for to protect the rights and interests of citizens and companies who share their data. *See* EU register of recognised data altruism organisations | Shaping Europe's digital future (europa.eu) [Articles 16-25]



- Establishment of a European Data Innovation Board to facilitate the sharing of best practices, on data intermediation, data altruism and the use of public data that cannot be made available as open data, as well as on the prioritisation of cross-sectoral interoperability standards. [Articles 29-30]

Protected categories of Data

Article 3

Categories of data

1. This Chapter applies to data held by public sector bodies which are protected on grounds of:

(a) commercial confidentiality, including business, professional and company secrets;

(b) statistical confidentiality;

(c) the protection of intellectual property rights of third parties; or

(d) the protection of personal data, insofar as such data fall outside the scope of Directive (EU) 2019/1024.

2. This Chapter does not apply to:

(a) data held by public undertakings;



Conditions for re-use of protected categories of PSI (1)

Article 5: Unlike the ODD, the DGA **does not oblige Public Sector Bodies** to allow data re-use.

1. Public sector bodies which are competent under national law to grant or refuse access for the re-use of one or more of the categories of data referred to in Article 3(1) **shall make publicly available the conditions for allowing such re-use and the procedure to request the re-use via a single information point** [set out in Article 8].

2. Conditions for re-use shall be non-discriminatory, transparent, proportionate and objectively justified with regard to the categories of data and the purposes of re-use and the nature of the data for which re-use is allowed. Those conditions shall not be used to restrict competition.

3. Public sector bodies shall, in accordance with Union and national law, ensure that the protected nature of data is preserved.

7. Re-use of data shall be allowed only in compliance with intellectual property rights. The **right of the maker of a database as provided for in Article 7(1) of Directive 96/9/EC shall not be exercised by public sector bodies** in order to prevent the re-use of data or to restrict re-use beyond the limits set by this Regulation.



Conditions for re-use of protected categories of PSI (2)

Article 6: Fees

1. Public sector bodies which allow re-use of the categories of data referred to in Article 3(1) may charge fees for allowing the re-use of such data.

2. Any fees charged pursuant to paragraph 1 shall be transparent, non-discriminatory, proportionate and objectively justified and shall not restrict competition.

3. Where public sector bodies charge fees, they shall take measures to provide incentives for the re-use of the categories of data referred to in Article 3(1) for non-commercial purposes, such as scientific research purposes, and by SMEs and start-ups in accordance with State aid rules. In that regard, public sector bodies **may also make the data available at a discounted fee or free of charge, in particular to SMEs and start-ups, civil society and educational establishments.**



Conditions for re-use of protected categories of PSI (3)

Article 8: Single information points

Member States shall ensure that all relevant information concerning the application of Articles 5 and 6 is available and easily accessible through a single information point. Member States shall establish a new body or designate an existing body or structure as the single information point. The single information point may be linked to sectoral, regional or local information points. The functions of the single information point may be automated provided that the public sector body ensures adequate support.

Time Frame: Article 9

Unless shorter time limits have been established in accordance with national law, the public sector bodies shall adopt a decision on the request for the re-use of the categories of data referred to in **Article 3(1)** within **two months of the date of receipt of the request.**

In the case of exceptionally extensive and complex requests for re-use, that two-month period may be extended by up to 30 days. In such cases the competent public sector bodies or the competent bodies referred to in Article 7(1) shall notify the applicant as soon as possible that more time is needed for conducting the procedure, together with the reasons for the delay.



Practical Advice: How to access Public Sector Information

1. Check if data is already made available on open access terms on the Internet. You can find the information in the data register of the Dutch government (in Dutch).

   - Also, worthwhile checking whether it can be obtained via a Data Altruism Organization.

2. If data is not available, then make a request from the relevant Public Sector Body.

You can typically find the form for making a request on the public sector body's website. If a form cannot be found, you are advised to contact the Information Management Department via email. Make sure you clearly indicate what data you are requesting and for what purpose.

- If your request is successful you may be required to make a payment for use and may be required to comply with specific terms and conditions in re-using the data.

- If your request is denied then the public sector institution must provide you with reasons for denying your request. They will typically also provide you with information on how you can appeal the decision. Otherwise, you can ask them how you could appeal the decision. If you think the decision is wrong you can proceed to appeal.

